

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jeffrey Tsui	Team: Squad #04	CCRB Case #: 202310494	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 10/19/2023 2:00 PM	Location of Incident: West Kingsbridge Road and Aqueduct Avenue	18 Mo. SOL 4/19/2025	Precinct: 52		
Date/Time CV Reported Thu, 10/19/2023 2:20 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 11/07/2023 11:19 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Joseph Walsh	04294	940848	INT FIO PRG
2. DT3 Christopher Montera	06624	961961	INT FIO PRG

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Ryan Smith	21735	968818	052 PCT
2. PO Evan Jeselson	24653	971102	052 PCT
3. PO Sydney Newbury	24827	970024	052 PCT

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Joseph Walsh	Abuse: Detective Joseph Walsh stopped § 87(2)(b)	A . Substantiated
B . DT3 Christopher Montera	Abuse: Detective Christopher Montera frisked § 87(2)(b)	B . Within NYPD Guidelines
C . DT3 Joseph Walsh	Abuse: Detective Joseph Walsh frisked § 87(2)(b)	C . Substantiated
D . DT3 Joseph Walsh	Abuse: Detective Joseph Walsh searched § 87(2)(b)	D . Substantiated
E . DT3 Joseph Walsh	Abuse: Detective Joseph Walsh failed to provide § 87(2)(b) with a business card.	E . Substantiated
F . DT3 Christopher Montera	Abuse: Detective Christopher Montera failed to provide § 87(2)(b) with a business card.	F . Substantiated
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		

Case Summary

§ 87(2)(b) filed this complaint with IAB on October 19, 2023, generating Log § 87(2)(b). The CCRB received this complaint on November 7, 2023.

On October 19, 2023, at approximately 2:00 PM, § 87(2)(b) sat on a public bench located on the corner of West Kingsbridge Road and Aqueduct Avenue in the Bronx. Detective Joseph Walsh, of Intel FIO, along with DET Christopher Montera, also of Intel FIO, stopped § 87(2)(b) (**Allegation A: Abuse of Authority, substantiated**). DET Walsh and DET Montera frisked § 87(2)(b) (**Allegation B: Abuse of Authority, within NYPD guidelines**) (**Allegation C: Abuse of Authority, substantiated**). DET Walsh searched § 87(2)(b) (**Allegation D: Abuse of Authority, substantiated**). DET Walsh and DET Montera told § 87(2)(b) that he was free to leave, and the officers left the location. DET Walsh and DET Montera did not provide § 87(2)(b) with their business cards (**Allegation E: Abuse of Authority, substantiated**) (**Allegation F: Abuse of Authority, substantiated**). § 87(2)(g), § 87(4-b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) was not issued any summons nor arrested as a result of the incident.

The investigation received BWC video for this incident. It is attached to IA #21 (BR1).

Findings and Recommendations

Allegation (A) Abuse of Authority: Detective Joseph Walsh stopped § 87(2)(b)

Allegation (B) Abuse of Authority: Detective Christopher Montera frisked § 87(2)(b)

Allegation (C) Abuse of Authority: Detective Joseph Walsh frisked § 87(2)(b)

Allegation (D) Abuse of Authority: Detective Joseph Walsh searched § 87(2)(b)

§ 87(2)(b) stated (BR2) that, on October 19, 2023, at approximately 2:00 PM, he was sitting on one of the benches located at West Kingsbridge Road and Aqueduct Avenue in the Bronx for approximately four hours. § 87(2)(b) was with his grandfather, § 87(2)(b). § 87(2)(b) described himself as a nineteen-year-old Black Hispanic male, who stands 5'7" tall, weighs 150 pounds, and is bald. § 87(2)(b) wore a red puffer jacket, grey sweatpants, and Jordan sneakers at the time of the incident. § 87(2)(b) had keys and a wallet inside one of his sweatpants pockets. An unmarked sedan and two marked SUVs arrived. DET Walsh, DET Montera, and officers from the 52nd Precinct exited their vehicles and approached § 87(2)(b). DET Walsh told § 87(2)(b) "Get up. Get off the seat. We have to check you. Do you have any weapons on you?" § 87(2)(b) stood up and told DET Walsh that he was not in possession of any weapons. DET Walsh asked § 87(2)(b) if he would consent to the search of his person. § 87(2)(b) said no. DET Walsh told § 87(2)(b) "Yes, you do consent to a search." DET Walsh escorted § 87(2)(b) a few feet away from the bench. DET Walsh then patted § 87(2)(b) leg and pants pockets. DET Walsh then searched the inside of § 87(2)(b) front and back pants pockets. DET Walsh did not remove any items from § 87(2)(b). § 87(2)(b) asked DET Walsh why he was being searched. DET Walsh later told § 87(2)(b) that the police approached him because he resembled an individual they were looking for. The officers then left.

According to DET Walsh's BWC video footage (BR3), at timestamp 0:30, DET Walsh exits from the passenger side of his patrol vehicle. At timestamp 0:35, DET Walsh approaches § 87(2)(b) who is sitting on a bench and talking on his cellphone. § 87(2)(b) appears to be a Black male. § 87(2)(b)

§ 87(2)(b) is wearing a black jacket over a black hoodie, with the hood over his head, and red sweatpants. At timestamp 0:43, DET Walsh grabs and squeezes the waist cuff of § 87(2)(b) jacket and lifts it up. § 87(2)(b) stands up. DET Walsh grabs § 87(2)(b) right arm and lifts it up. DET Walsh holds § 87(2)(b) right arm with one hand and uses his other hand to frisk the front pockets of § 87(2)(b) jacket. At timestamp 0:53, § 87(2)(b) stands up and he complies. DET Walsh holds § 87(2)(b) jacket waist cuff to his chest level and continues to grab it by the front pocket. § 87(2)(b) sweatpants slightly sag off his waist when he stands. DET Walsh continues to hold onto § 87(2)(b) arm and the front of his jacket pocket. At timestamp 0:55, DET Montera holds § 87(2)(b) left arm with his right hand and frisks § 87(2)(b) front left pants pocket with his left hand. DET Walsh lets go of § 87(2)(b) arm and frisks the front and backside of § 87(2)(b) pants. At timestamp 1:13, DET Walsh frisks § 87(2)(b) legs and then he frisks the side of his torso. At timestamp 1:22, DET Walsh asks § 87(2)(b) if he has identification. § 87(2)(b) tells him no. At timestamp 1:32, § 87(2)(b) tells DET Walsh that he is from Georgia. DET Walsh asks him why he is in New York and § 87(2)(b) replies that his mother lives in the area. At timestamp 1:35, DET Walsh unzips § 87(2)(b) jacket and frisks the back of his torso inside the jacket and over his sweater. DET Walsh then frisks both sides of § 87(2)(b) torso over his jacket. At timestamp 1:41, DET Walsh frisks both of § 87(2)(b) legs. DET Walsh briefly checks the exposed portion of § 87(2)(b) ankle above his sneakers. At timestamp 1:56, § 87(2)(b) asks DET Walsh why he approached him. DET Walsh tells § 87(2)(b) that there have been shootings and robberies in the vicinity. The BWC video footage does not clearly show whether DET Walsh or any other officer reaches into § 87(2)(b) pockets.

DET Walsh stated (BR4) that he was informed by “one of the sergeants” from his command that a Black male, in his 20s, wearing black sweatpants, and “some type of red sweatshirt” was possibly in possession of a firearm in the vicinity of the incident location. DET Walsh stated that location was a high crime area, prone to robberies and drugs sales. DET Walsh and DET Montera arrived at the location and observed § 87(2)(b) sitting on a bench. There were other people sitting in the area. § 87(2)(b) repeatedly stood up and sat back down on the bench and paced around in a “nervous fashion.” DET Walsh observed multiple bulges on the front side of § 87(2)(b) jacket, close to the waistband area. § 87(2)(b) also repeatedly stuck his hands inside his jacket pocket when he got off the bench and released it when he sat down. DET Walsh did not know the specific shape of the bulge. DET Walsh stated the totality of his observation led him to believe that § 87(2)(b) may be in possession of a firearm. DET Walsh then decided to approach § 87(2)(b). DET Walsh and DET Montera then approached § 87(2)(b). DET Walsh did not recall whether he instructed § 87(2)(b) to stand up or § 87(2)(b) got up on his own. DET Walsh then frisked § 87(2)(b) waistband area, legs, and jacket. DET Walsh frisked these areas because these were general areas where a weapon can be. He added that he has had instances where a firearm was in the waistband but slipped down the pants so the firearm can be on any part of the body. DET Walsh did not feel anything on § 87(2)(b) legs. DET Walsh frisked the lower portion of § 87(2)(b) jacket and felt multiple layers of top clothing that may have “provided more bulkiness.” DET Walsh opened § 87(2)(b) jacket because there could be pockets inside the pocket and because the waistband area was not accessible to him unless the jacket was opened. DET Walsh did not recall whether he went inside any of § 87(2)(b) pockets.

DET Montera’s statement was generally consistent with DET Walsh’s statement (BR5). According to DET Montera’s recollection, the suspect was described as a Black male in his 20s; he did not recall what the suspect wore. DET Montera and DET Walsh observed § 87(2)(b) for approximately ten minutes. § 87(2)(b) was a black male, in his late 20s to early 30s, and had a beard. DET Montera did not recall what § 87(2)(b) wore. § 87(2)(b) was sitting on a bench by himself; however, there were other individuals on nearby benches. § 87(2)(b) was on his cellphone, repeatedly got up and down from the bench, and adjusted his waistband every time he stood up.

DET Montera observed a bulge in § 87(2)(b) jacket pocket. DET Montera thought that § 87(2)(b) had something in his jacket because the bulge would fall down every time § 87(2)(b) got up. DET Montera did not observe additional movements that indicated § 87(2)(b) was armed. DET Montera and DET Walsh then approached § 87(2)(b). DET Montera held § 87(2)(b) left arm while DET Walsh frisked the front and back of § 87(2)(b) waistband. DET Walsh also patted both of § 87(2)(b) legs and then unzipped his jacket and observed the inside of the jacket. DET Montera initially stated that he did not frisk § 87(2)(b). After reviewing DET Walsh's BWC, DET Montera acknowledged frisking § 87(2)(b) pocket to make sure there were no weapons; he did not feel any objects inside.

In People v. Cantor, 36 N.Y.2d 106, 111 (1975) (BR6), the court ruled that whenever an individual is physically or constructively detained by virtue of a significant interruption of his liberty of movement as a result of police action, that individual has been seized within the meaning of the Fourth Amendment.

According to NYPD Patrol Guide Section 212-11 (BR7), officers may stop an individual when a police officer "has an individualized reasonable suspicion that the person stopped has committed, is committing, or is about to commit a felony or Penal Law misdemeanor." It further elaborates that reasonable suspicion "exists when the information known to the member of service would make an ordinarily prudent and cautious police officer under the circumstances believe that a felony or Penal Law misdemeanor has been, is being or is about to be committed. The officer must have a particularized and objective basis for suspecting the person stopped of the criminal conduct. The Patrol Guide further stated that officers must be able to articulate specific facts establishing justification for the stop; hunches or gut feeling are not sufficient."

§ 87(2)(g)
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§ 87(2)(g) BWC footage shows § 87(2)(b) wearing a black hoodie, with a gray/black windbreaker, and red sweatpants. § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as *Substantiated*.

In People v. De Bour, 40 N.Y.2d 210 (1976) (BR8), the court ruled that officers may frisk an individual if they reasonably suspect that they are in danger of physical injury by virtue of the individual being armed. De Bour notes that a "pocket bulge" can be caused by "any number of innocuous objects," while a waistband bulge is "telltale of a weapon." Further, an officer may only enter the interior portions of a person's clothing or personal property if they feel an object that they reasonably suspect is a weapon or dangerous instrument for the purpose of removing the object.

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§ 87(2)(b)

It is therefore recommended that **Allegation B** be closed as *within NYPD guidelines* and **Allegation C** be closed as *substantiated*.

§ 87(2)(b) § 87(2)(g) BWC footage is inconclusive in this matter. However, BWC footage captures DET Walsh opening § 87(2)(b) jacket and lifting the legs of § 87(2)(b) sweatpants. § 87(2)(g) § 87(2)(b)

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§ 87(2)(b) § 87(2)(b)

It is therefore recommended that **Allegation D** be closed as *substantiated*.

Allegation (E) Abuse of Authority: Detective Joseph Walsh failed to provide § 87(2)(b) with a business card.

Allegation (F) Abuse of Authority: Detective Christopher Montera failed to provide § 87(2)(b) with a business card.

§ 87(2)(b) did not ask DET Walsh or DET Montera for their RTKA cards (**BR2**).

DET Walsh (**BR4**) and DET Montera (**BR5**) stated that § 87(2)(b) was compliant with their instructions and was neither issued a summons nor arrested because their investigation yielded negative results for a firearm. Both detectives stated that they were required to present their RTKA cards to § 87(2)(b) at the conclusion of the incident; however, neither DET Walsh nor DET Montera offered it to § 87(2)(b). DET Walsh stated that he had RTKA cards inside his vehicle but did not offer one to § 87(2)(b) because he did not appear upset, and § 87(2)(b) had not requested one from him. DET Montera stated that he ran out of RTKA cards and did not have any on his person at the time of the incident.

According to NYC Administrative Code 14-174 (BR9), officers are required to offer a business card at the conclusion of the following law enforcement activities, except in cases when a summons is issued or an arrest is made, as follows: noncustodial questioning of individuals suspected of criminal activity; a stop where an officer has an individualized, reasonable suspicion that the person stopped has committed, is committing, or is about to commit a crime and where a reasonable person would not feel free to end the encounter; frisk; and/or a search of persons or property, including

vehicles. [...] Explain reason for law enforcement activities, unless providing this information would impair a criminal investigation, or exigent circumstances are present.

Officers are required to provide an RTKA card at the conclusion of any law enforcement activity that does not result in a summons issued or an arrest made. § 87(2)(g)

As such, it is recommended **Allegations E and F** be closed as *substantiated*.

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (**BR10**).
- DET Walsh has been a member of service for eighteen years and has been a subject in eleven CCRB complaints and twenty-nine allegations, none of which were substantiated. § 87(2)(g)
- DET Montera has been a member of service for seven years and has been a subject in seven CCRB complaints and eighteen allegations, of which four were substantiated:
 - [202002202] involved substantiated allegations of failure to provide RTKA cards and shield number against DET Montera. The Board recommended Command Discipline B and the NYPD imposed no discipline.

- [202003354] involved substantiated allegations of failure to provide RTKA cards and shield number against DET Montera. The Board recommended Command Discipline B and the NYPD imposed no discipline.
- § 87(2)(g) [REDACTED]

Mediation, Civil, and Criminal Histories

- § 87(2)(b) [REDACTED] declined to mediate this complaint.
- As of April 23, 2024, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (BR11).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 04

Investigator:	<u>Jeffrey Tsui</u>	<u>INV Jeffrey Tsui</u>	<u>02/04/2025</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Raquel Velasquez</u>	<u>IM Raquel Velasquez</u>	<u>02/03/2025</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date